

# Press and Publication Act, 1991

*Document type: act*

*Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs*

*Chunks merged: 13*

Printing and Publication Act, 2048

Date of Royal Seal and Publication

2048.02.16

Amending Acts:

1. Printing and Publication Related (First Amendment) Act, 2048 2048.07.14
2. Some Nepal Acts Amending Act relating to Communication, 2075 2075.10.18

Date of Authentication and Publication

2063.04.23

3. Act to Revive Provisions of Some Nepal Acts, 2063 2063.04.23
4. Republic Strengthening and Some Nepal Laws Amending Act, 2066 2066.10.07
5. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender Violence, 2072 2072.06.14
6. Some Nepal Acts Amending Act, 2082 2082.04.14

Act No. 5 of the year 2048

Act made to provide for provisions relating to Printing and Publication

Preamble: Whereas, it is desirable to make timely legal provisions relating to printing and publication in order to maintain good relations, morality, decency, and ethics among the people of various classes and sectors, and to create an environment where the country's journalism sector can enjoy the freedom of expression in a dignified and responsible manner, freely and fearlessly;

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the Council of Ministers pursuant to Article 129 of the Constitution of the Kingdom of Nepal, 2047.

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Printing and Publication Act, 2048".  
(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
  - (a) "Press" means the means for producing books, newspapers, periodicals or documents, and the word includes printing machines, types, lithographic machines, all installations, implements, offices and parts thereof.
  - (b) "Publication" means books, newspapers, periodicals, other papers and documents.
  - (c) "Book" means every book, booklet, pamphlet, brochure, sheet music, map, atlas, etc., printed in whole or

in parts, or produced by a machine or lithographed.

(d) "Newspaper" means a paper published publicly for sale or distribution containing writings, news and views, with or without comments, on current matters of public importance.

(e) "Periodical" means a paper related to news containing public news or its comments and analysis, but not counted as a newspaper.

(f) "Paper/Periodical" means newspapers and periodicals and other papers.

Added by Some Nepal Acts Amending Act, 2082.(f1) "Online Communication Medium" means an institution or medium established or registered pursuant to prevailing law that produces, publishes, broadcasts or distributes messages or thematic ideas, information and news, pictures, audio, audio-visual in the form of signals, signs, sound, graphics, video, animation and multimedia through the use of the internet.

(g) "Other Paper/Periodical" means other papers published in various disciplines including arts, literature, science, tourism, cinema, etc., which are not counted as newspapers and periodicals.

(h) "Document" means posters, pictures, maps, photos or any other visual representation.

(i) "Publisher" means a person who has obtained a certificate to publish a paper/periodical pursuant to Section 7.

(j) "Editor" means a person responsible for selecting and editing the content to be published in a paper/periodical.

(k) "Printer" means the owner of the press if the owner himself/herself operates the press, or the person appointed to operate the press if a person is appointed for that purpose.

(l) "Journalist" means a person who collects or edits content to be published in a paper/periodical, and the word includes the editor and editorial staff, and the word also includes the editor and columnist.

(m) "Prohibited Publication" means a publication containing matters not to be published pursuant to Section 14.

(n) "Forbidden Publication" means a publication containing matters which have been forbidden pursuant to Section 15.

(o) "Press Registrar" means an officer appointed pursuant to Section 19.

(p) "Local Authority" means an officer designated by the Government of Nepal by publishing a notice in the Nepal Gazette, and if no such officer is designated, it means the Chief District Officer.

(q) "Prescribed" or "As prescribed" means prescribed or as prescribed by rules made under this Act.

## Chapter-2

### Provisions relating to Press

3. Registration of Press Required: (1) A person wishing to operate a press shall submit an application to the Local Authority in the prescribed format, stating the prescribed details for operating the press.

(2) After receiving an application pursuant to sub-section (1), the Local Authority shall make necessary inquiries into the application and, upon collecting the prescribed fee, issue a certificate as prescribed to the applicant to operate the press.

(3) After issuing a certificate pursuant to sub-section (2), the Local Authority shall record the details relating to the press in the registration book.

(4) If there is any change in the details submitted pursuant to sub-section (1), the Printer shall immediately notify the Local Authority.

Upon receiving such notice, the Local Authority shall also record the date and details of such change in the registration book pursuant to sub-section (3).

(5) Notwithstanding anything written in sub-section (4), if a press registered in one district needs to be moved to another district for operation, a fresh application must be submitted and a certificate obtained pursuant to sub-section (1). 4. Press Not to be Closed or Confiscated: A press registered pursuant to Section 3 shall not be closed or confiscated on the ground of printing news, articles or other textual material. Chapter-3

#### Provisions relating to Books

5. Registration of Book: (1) The publisher of a book shall, before selling or distributing the book published by him/her, submit two copies of such book free of cost to the Local Authority.

(2) The Local Authority shall register the books received pursuant to sub-section (1) in the registration book and record the following matters as well:-

(a) Name of the book and the particulars printed on the cover page (if not in the Nepali language, to be translated and recorded in Nepali),

(b) Language in which the book is written,

(c) Name of the author, translator or editor of the book or part thereof,

(d) Subject of the book,

(e) Place of printing and publication,

(f) Name of the printer or printing institution and publisher or publishing institution,

(g) Date of publication,

(h) Number of pages,

(i) Size,

(j) Edition number,

(k) Copies printed in that edition,

(l) Whether printed or lithographed,

(m) Sale price, and

(n) Name, surname and address of the person entitled to copyright. 6. Matters to be Mentioned in Book: The publisher of a book shall clearly mention in every book the full names of the publisher, editor or author or translator, printer, press and the person entitled to copyright, as well as the edition number, year, copies printed in that edition and sale price, etc., in a clearly understandable manner. Chapter-4

#### Provisions relating to Paper/Periodical

7. Registration of Paper/Periodical Required: Amended by the First Amendment.(1) A person wishing to publish a paper/periodical for public sale or distribution Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. within shall submit an application to the Local Authority in the prescribed format, stating the name, type, language, size, page number, number of copies to be printed and place of publication, along with the prescribed fee, for registration of the paper/periodical.

Provided that a paper/periodical published as an official organ of an office of the Government of Nepal, a body corporate owned by the Government of Nepal, a university, a teaching institution approved by the Government of Nepal, an association or institution, firm, company established pursuant to prevailing law, or any political party or organization, shall not be required to be registered under this section.

(2) After receiving an application pursuant to sub-section (1), the Local Authority shall make necessary inquiries into the application, and if any matter needs to be understood from the applicant, after understanding that as well, shall issue a provisional certificate as prescribed to the applicant to publish such paper/periodical within thirty-five days from the date of receipt of the application. Provided that if any other paper/periodical with a name matching the name mentioned in the application has already been registered in the office of the Local Authority, such provisional certificate shall not be issued to the applicant.

(3) After issuing the provisional certificate pursuant to sub-section (2), the Local Authority shall send a notice of the same, along with the full details of such paper/periodical, to the Press Registrar.

(4) After receiving the notice pursuant to sub-section (3), the Press Registrar shall check whether any other paper/periodical with a name matching the name of that paper/periodical is registered in the office of any Local Authority, and if no such matching name is registered, the Press Registrar shall give approval to issue a permanent certificate to publish such paper/periodical.

(5) After obtaining approval from the Press Registrar pursuant to sub-section (4), the Local Authority shall issue a permanent certificate to the concerned applicant.

(6) Amended by the First Amendment.If there is a valid reason why a permanent certificate cannot be issued to the applicant, the Local Authority shall generally inform the applicant of the same within three months from the date of application. After giving such information, the applicant's provisional certificate shall stand automatically cancelled.

(7) After issuing a certificate pursuant to sub-section (5), the Local Authority shall record the details relating to the paper/periodical in the registration book.

Amended by the First Amendment.(8) If the name, type or language of a paper/periodical needs to be changed, or if a paper/periodical needs to be published in more than one language, or if a paper/periodical being published from one district needs to be published from another district or more than one district, an application shall be submitted to the Local Authority pursuant to sub-section (1) and a certificate for the same shall also be obtained. (9) If there is any change in details relating to the paper/periodical other than those mentioned in sub-section (8), the publisher shall submit the details thereof to the Local Authority for approval. (10) Upon receipt of the details pursuant to sub-section (9), the Local Authority shall record the same in the registration book pursuant to sub-section (7) and grant approval to the concerned publisher. (11) The Local Authority shall inform the Press Registrar of the changes made in the details of a paper/periodical registered under this section. 7A. Cancellation of Certificate Registration: The registration of a paper/periodical shall be cancelled in the following circumstances:- (a) If not even a single issue has been published within one year from the date of registration of the paper/periodical, (b) If a written notice thereof has not been given to the

Department of Information within one year from the date of ceasing publication of the paper/periodical, Provided that such notice may be given for a period of up to one year at a time, and not exceeding a cumulative period of five years by giving notice up to five consecutive times. 7B. Registration of Online Communication Medium Required: Added by Some Nepal Acts Amending Act relating to Communication, 2075.(1) A person wishing to operate an online communication medium shall submit an application to the Local Authority in the prescribed format, along with the prescribed fee, for registration of such medium. (2) After receiving an application pursuant to sub-section (1), the Local Authority may, after making necessary inquiries, register the online communication medium if it appears suitable for registration. (3) Other provisions relating to the registration, operation and renewal of online communication mediums shall be as prescribed. 8.

Transfer of Ownership of Paper/Periodical: (1) If the ownership of publication of a paper/periodical registered pursuant to Section 7 is transferred by law and acquired by someone, the person acquiring it shall, within seven days, inform the Local Authority of the same in the prescribed format. (2) After receiving information pursuant to sub-section (1), the Local Authority shall record the related details in the registration book and inform the Press Registrar of the transfer of ownership of the paper/periodical. 9. Matters to be Mentioned in Paper/Periodical: The name of the publisher, editor, printer and press, as well as the year of publication and issue number, shall be clearly mentioned as prescribed in the paper/periodical. Added by the First Amendment.9A. Size and Page Number of Paper/Periodical: (1) The minimum size and page number of a paper/periodical published after registration pursuant to Section 7 shall be as prescribed. (2) A paper/periodical published with a size and page number less than that prescribed under sub-section (1) shall not be given the facilities, assistance or advertisements provided by the Government of Nepal or an institution owned by the Government of Nepal. 10. Publication of Paper/Periodical: The publisher shall publish every edition of the paper/periodical without deviating from the details mentioned in the registration book pursuant to Section 7. 11. Notice of Ceasing Publication Required: If the publication of a paper/periodical operated after obtaining a certificate pursuant to Section 7 ceases, the publisher shall give notice of such cessation to the Local Authority. 12. Prior Restraint Not to Be Imposed: Except in the circumstances pursuant to Sections 14 and 15, no prior restraint shall be imposed on publishing any news, article or any other textual material in a paper/periodical. 13. Registration of Paper/Periodical Not to Be Cancelled: The registration of a paper/periodical registered pursuant to Section 7 shall not be cancelled on the ground of publishing any news, article or textual material in such paper/periodical. 14.

Prohibition on Publication: The following matters shall not be published in a book or paper/periodical:- (a) Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066. (b) Matters impugning the sovereignty and integrity of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066., (c) Matters likely to disrupt the security, peace and order of Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066., Added by the Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender Violence, 2072.(c1) Matters defaming or insulting someone's character or promoting gender violence or discrimination, (d) Matters creating enmity and spreading communal ill-will among people of different castes, ethnicities, religions, classes, regions, or sects, and (e) Matters impacting the morality, decency and social dignity of the general public. 15. Forbiddance on Publication: (1) Keeping in view the national interest, the Government of Nepal may, by publishing a notice in the Nepal Gazette, issue an order prohibiting the publication of news, information or any other textual material related to a particular subject, event or region, for a period specified in that notice, or Added by the First Amendment.allowing publication only after scrutiny by an authority specified in that notice. (2) After an order under sub-section (1) is issued, no one shall publish, translate or even quote such news, information or

textual material. 16.

Control on Import of Foreign Publication: (1) The Government of Nepal may issue an order to prohibit the import of foreign publications containing matter that has the following purpose or may have such potential consequences:- (a) Doing acts against national interest and dignity, Deleted by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.(b) Disrupting the peace, order and security of the nation, (c) Disrupting relations with foreign states and governments, Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.(d) Creating enmity and spreading communal ill-will among people of different castes, ethnicities, religions, classes, regions, or sects, and Deleted by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.(e) Impacting the morality, decency and social dignity of the general public. (2) If there is suspicion that publications prohibited under sub-section (1) are being imported, the concerned customs or postal officer shall detain such goods and send two copies of the suspected publication to the Local Authority with a covering letter, and keep the rest detained at his/her office. (3) After receiving the publication sent by the customs or postal chief pursuant to sub-section (2), the Local Authority shall, if there is any reason to detain such publication, inform the importer of the same stating the reason, and if there is no reason to detain it, shall, within twelve hours of receiving such publication, order the customs or postal chief to release the detained publication to the importer. (4) The Government of Nepal may, if it deems necessary, remove the prohibition imposed under sub-section (1) at any time. 17. Export, Sale, Distribution etc. of Prohibited Publication or Forbidden Publication Not Allowed: (1) No one shall export a prohibited publication or a forbidden publication. (2) No one shall knowingly print, sell, distribute or display a prohibited publication or a forbidden publication. Repealed by the First Amendment.18. Chapter-5 Provisions relating to Press Registrar, Press Representative and Independent Journalist 19.

Press Registrar: (1) The Government of Nepal shall appoint a Press Registrar for the purpose of maintaining records of all details of papers/periodicals published within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 (2) The functions, duties and powers of the Press Registrar appointed pursuant to sub-section (1) shall be as follows:- (a) Giving approval for issuing permanent certificates for papers/periodicals pursuant to Section 7, (b) Obtaining all details of papers/periodicals registered pursuant to Section 7 from the Local Authority and maintaining records thereof, (c) Obtaining information from the Local Authority regarding changes occurring from time to time in the name, language, type, periodicity, place of publication, etc., of papers/periodicals and maintaining updated records, (d) Preparing and publishing an annual report on the names, types, periodicity, language, etc., of papers/periodicals published within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 , (e) Advising the Government of Nepal regarding facilities to be provided to papers/periodicals, (f) If any person requests details about a paper/periodical for the purpose of placing advertisements, providing the details upon collection of the prescribed fee, (g) Performing such other functions as are specified to be performed by the Press Registrar under this Act or other prevailing law. (3) Other provisions relating to the Press Registrar shall be as prescribed. Amended by the First Amendment.20. Provision relating to Press Representative: (1) Any Nepali or foreign press or communication-related institution shall send the prescribed details, mentioning the names, qualifications and working areas of its representatives working within Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amending Act, 2066 , to the prescribed authority.

Provided that a journalist accompanying a visiting head of state or head of government or a high-level delegation of a friendly foreign nation during a visit to Nepal, or a journalist visiting Nepal upon invitation of the Government of Nepal, the Government of Nepal may grant an exemption from submitting such details for the duration of that visit. (2) The Government of Nepal may make arrangements to issue a Press Representative Certificate to the representatives of the press or communication institutions that send details pursuant to sub-section (1). (3) The Government of Nepal may make arrangements to issue a Temporary Press Representative Certificate to journalists visiting Nepal for a short duration on national festivals or special occasions of Nepal. (4) A person wishing to obtain a Press Representative Certificate pursuant to sub-section (2) or (3) shall submit an application to the prescribed authority with the recommendation of the institution with which he/she is engaged, attaching a copy of the qualification certificate as prescribed. An independent journalist wishing to obtain a Press Representative Certificate may also submit an application accordingly. (5) After receiving an application pursuant to sub-section (4), the prescribed authority may, after making necessary inquiries into such application, collect the prescribed fee and issue a Press Representative Certificate or a Temporary Press Representative Certificate to the applicant in the prescribed format. (6) A person who has obtained a Press Representative Certificate or a Temporary Press Representative Certificate pursuant to sub-section (5) may, subject to this Act and prevailing law, collect news within his/her working area. (7) Other provisions relating to Press Representatives and independent journalists shall be as prescribed. Chapter-6 Penalties 21. For Operating Press Without a Certificate: (1) If any person operates a press without obtaining a certificate pursuant to Section 3, the Local Authority may fine such person up to ten thousand rupees. (2) If any person operates a press without updating the changed details under sub-section (4) of Section 3, the Local Authority may fine such person up to three thousand rupees. 22. For Furnishing False Details: If any person is found to have knowingly furnished false details given under Sections 3 and 7, the Local Authority may fine him/her up to three thousand rupees. 23.

For Not Submitting Book: If any person fails to submit a book required to be submitted under Section 5, the Local Authority may impose a fine equal to the price of the book and an amount equivalent to that price. 24. For Not Mentioning Required Matters: If a publisher fails to mention the required matters in a book or paper/periodical under Sections 6 and 9, the Local Authority may fine such publisher up to five thousand rupees. Repealed by the First Amendment. 25. 26. For Publishing Publication Unauthorizedly: (1) If any person publishes a publication without obtaining a certificate under Section 7, such person shall be liable to a fine of up to five thousand rupees or imprisonment for up to six months or both. (2) If any person publishes a publication without updating the changed details under sub-section (9) of Section 7, the Local Authority may fine such person up to three thousand rupees. 27. For Publishing Prohibited Publication or Forbidden Publication: If any person publishes any matter prohibited under Section 14 or forbidden under Section 15, if the prevailing law provides any penalty for such act, the punishment shall be according to that law, and if not, Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063. the punishment shall be a fine of up to ten thousand rupees or imprisonment for up to one year or both. 28. For Exporting, Selling, Distributing, etc. Prohibited Publication or Forbidden Publication: (1) If any person exports a prohibited publication or a forbidden publication, the Local Authority may fine him/her Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063. up to five thousand rupees and may also confiscate such publication. (2) If any person knowingly prints, sells, distributes or displays a prohibited publication or a forbidden publication, the Local Authority may fine him/her Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063. up to five

thousand rupees and may also confiscate such publication. 29.

For Translating or Quoting Forbidden Publication: If any person translates or quotes a forbidden publication, the Local Authority may fine such person Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.up to five thousand rupees and may also confiscate such publication. 30. For Importing Foreign Publication: If any person imports a foreign publication prohibited under Section 16, the Local Authority may fine such person Amended by the Communication Related Some Nepal Acts Amending Ordinance, 2062, and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.up to five thousand rupees and may also confiscate such publication. Amended by the First Amendment.31. For Working Without Obtaining Press Representative's Certificate: (1) A person who has not obtained a certificate under sub-section (5) of Section 20 shall not be given the facilities, assistance or concessions provided to Press Representatives by the Government of Nepal or an institution owned by the Government of Nepal. (2) A press or communication institution that does not provide the details under sub-section (1) of Section 20 shall not be given the facilities, assistance or concessions provided by the Government of Nepal or an institution owned by the Government of Nepal. (3) If any person who has obtained a certificate under sub-section (5) of Section 20 misuses the facilities, assistance or concessions obtained from the Government of Nepal or an institution owned by the Government of Nepal, the Government of Nepal may suspend, withdraw or cancel the certificate of such person for a specified period. (4) If the activities of any foreign Press Representative who has obtained a certificate under sub-section (5) of Section 20 are deemed adverse to the national interest, the Government of Nepal may withdraw or cancel the Press Representative Certificate of such person. 32. Appeal: A person dissatisfied with a decision made by the Local Authority under this Chapter may file an appeal in the prescribed court within thirty-five days from the date of such decision. Chapter-7 Miscellaneous 33.

Entitlement to Compensation: If a publication confiscated under this Act is not determined to be a prohibited publication or a forbidden publication, or if the charge for which it was confiscated is not proven, the publisher or owner shall receive compensation from the Government of Nepal as follows:- (a) In case of confiscation of a publication with a fixed price, an amount not exceeding the actual value that the publisher or owner could have obtained upon sale of such publication, Provided that, in the case of a book, if the publisher or owner takes back the book, he/she shall not be entitled to compensation. (b) In the case of other materials without a fixed price, an amount not exceeding the actual cost incurred in obtaining or publishing such material. 34. Qualification of Editor or Press Representative: The qualification of a person to be the editor of a paper/periodical published after obtaining a certificate under this Act, and to work as a Press Representative, shall be as prescribed. 35. Classification of Paper/Periodical: The prescribed authority may classify papers/periodicals on the prescribed basis. While making such classification, the prescribed authority shall consult the Press Council. 36. Publication of Name for Work Not Done: If a person's name is published in a book or paper/periodical as editor, publisher or printer, and he/she has not done such work, such person may, after becoming aware of such publication, refute the circumstances due to which his/her name was printed, by giving notice to the Local Authority. 37. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 38. Power to Delegate: The Government of Nepal may, by publishing a notice in the Nepal Gazette, delegate any or all of its powers under this Act to an officer to exercise. 39. Power to Make Rules: The Government of Nepal may make rules to carry out the objectives of this Act. 40. To Be According to This Act: Matters written in this Act shall be according to this Act and other prevailing law. 41. Saving: Certificates obtained prior to the commencement of this Act shall be deemed to have been obtained under this Act. 42. Repeal: The Printing and Publication Act, 2039 is hereby repealed.